



**UNIVERSITÀ
DI TRENTO**

**Facoltà di
Giurisprudenza**

**Bachelor's Degree in
Comparative, European and International Legal Studies**

The protection of platform workers: a comparative analysis between Europe and China

**Supervisor
Professor
Chiara Cristofolini**

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Introduction

Defining non-standard work, gig economy, platform work and digital labor platforms

The rise of ride-hailing companies in the past few years such as Uber and Deliveroo has led to the popularization of terms such as “digital platform work” and “gig economy”, not only in academia but in the media and in day-to-day conversations as well, making them part of our common discourse. While this has certainly helped to spark a dialogue on the benefits and drawbacks of the gig economy and platform work, it has also led in part to a muddling of the meanings of these terms, leading to them being used at times interchangeably and at times erroneously altogether.

For instance, searching “gig economy” on Google returns among the first results a web page that defines the term as a *“business model where workers rely on a digital platform to be put in contact with clients to provide their freelance services”*. (“Doing Business”) This definition is, as we will see, an example of the conflation of the terms we just mentioned, which erroneously shifts the focus of the business model from the nature of the employment relationship through which the work is performed to the digital and online nature of the platform which mediates it. Indeed, there are employment relationships that are not mediated through online platforms and yet, for all intents and purposes, fall within the business model of the gig economy. This semantic muddling has not been confined to an informal setting, but can be found in the literature as well.

It is for this reason that the first step taken entails defining all those terms (non-standard employment, gig economy, platform work and digital labor platforms) whose meaning is not yet unanimous. Outside the standard employment relationships regulated in the field of labor law by all major legal systems, it is possible to define forms of so-called “non-standard employment” (sometimes known as “atypical work” or “precarious work”)¹, which according to the ILO include *“temporary employment, part-time work, temporary agency work and other multi-party employment relationships, disguised employment relationships and dependent self-employment”*. (ILO 2016, 2) This is a very broad definition that aims at including all kinds of remunerated work which existing legislation does not comprehensively regulate, as they weren’t common when labor regulatory frameworks were first developed.

The gig economy, in turn, is a subsection of non-standard employment, and it’s defined by workers operating autonomously under employment contracts that do not categorize them as employees, but rather as independent contractors or as self-employed. This ensures more flexibility for the worker, who does not operate according to the rhythms and rules set by the employer, but can freely set his or her own pace. As a consequence, the remuneration is not defined by an hourly wage that is owed to the

1 In the legal field the term “non-standard employment” is generally preferable as it provides more legal certainty. See (De Stefano and Aloisi 2018) for more.

worker, but rather it is tied exclusively to the performance of the work itself, and it's usually not owed by the company itself, but directly by the client for which the work has been performed. It is for these reasons (timings and remuneration tied to the performance of a work) that the gig economy has also been referred to as the "on-demand" economy.

Another characteristic of the gig economy is that because the worker is paid not by the contracting company itself but by the client, the organizational form of the company changes: the company becomes a simple mediator between the worker and the client. That is, it becomes a "platform", and that's why the gig economy has also been called the "platform economy". In mediating between workers and consumers, the revenues of the company must come mainly from a "fee" that is applied to the payment the consumer makes, thus directly tying the success of the company to the pool of workers and clients it mediates; the bigger the pool is the better for the company, which explains the proliferation of online digital platforms managing workers. It's within these so-called "digital labor platforms" that "platform work" is managed.²

Finally, platform work is further divided into 2 working categories: crowdwork and on-demand work, whereby the former allows for the whole work to be performed online (e.g. freelance work) while the latter requires it to be performed at least partially offline (e.g. delivery driver). This is a common distinction, although it may sometimes have different names: an ILO report (2021) calls them "online web-based platform" and "location web-based platform" respectively.

The development of the gig-economy

The gig economy first surfaced in the music sector, referring to the transactions by which musical artists would provide single, one-off concerts (also known as 'gigs') without further commitments. (OECD 2019, 5) The spread of the novel employment arrangements which we recognize today as "gig economy" started in the United States in the 1970s and was the product of a series of economical, technological and cultural factors intertwined with one another. These factors are:

- The deregulation which started in the 1980s which led to the dismantling of the vertically integrated firm (Berg 2019, 4) and the spread of non-standard employment relations, generally unprotected by employment and labor laws (Collier et al. 2017, 2). In general, since the 1980s "flexibilization" has become an important trend in employment relations (Woodcock 2021, 8; Aloisi 2016, 656), together with the casualization of work (De Stefano 2015; Collier et al. 2017, 4).

- The technological developments in the past decades, such as the process of digitalization, the development of the internet, the increasing importance of *"information and communication technologies ("ICT") along with the spread of the broadband"* (Aloisi

2 The integral use of these platforms for work and not just for establishing a connection between potential job seekers and employers is the element that distinguishes digital labor platforms from employment websites. (OECD 2019, 5)

2016, 658) and of big data, coupled with the spread of smartphones (Collier et al. 2017, 3).

Only through a combination of all of these factors could the platform economy arise, and the mass adoption of the smartphone in the past few years has allowed it to thrive not just in developed economies, but in developing ones as well, such as China. As a result, the number of digital labor platforms has boomed, increasing up to five-fold in number in the past decade. (ILO 2021, 19) In 2019, digital labor platforms generated worldwide a revenue of over 50 billion dollars. (Ibid., 20) Some economists have even predicted that by 2025 platforms will mediate one third of all labor transactions. (Graham and Anwar 2019, 214)

The trend is therefore quite clear: digital labor platforms can be expected to play an increasingly important role in our society. It becomes all the more important, then, to investigate the legal and socioeconomic issues that have emerged in this sector of the economy.

The legal and social issues raised by digital labor platforms

The rise of these novel employment relationships has brought about a series of legal and social issues that are deeply intertwined: mainly, the problem stems from the fact that platform work (and gig work in general) are new phenomena born from recent technological and economic developments which have not yet been fully dealt with by existing legal frameworks. As such, the current situation is one in which companies and workers operate in legal gray areas.

In particular, the first and main legal issue brought by platform work has been one of classification: are the workers fully-fledged employees or independent contractors? In the light of regulatory vacuums, companies have set to exploit this situation by hiring workers as independent contractors, which allows for the circumvention of labor and social security obligations that would be owed had the workers been classified as employees. (De Stefano 2015, 9)

This is part of a wider strategy called “regulatory arbitrage”, which is defined as *“the manipulation of the structure of a deal to take advantage of a gap between the economic substance of a transaction and its regulatory treatment”*. (Fleischer 2010, 4) This “sham self-employment” aimed at circumventing labor and social protections has for instance been alleged against both Uber and Lyft in the US in various class action lawsuits. (De Stefano 2015, 11; Calo and Rosenblat 2017, 1626)

In one such cases, *Cotter v. Lyft*, Judge Chhabria summarized the issue:

“We generally understand an employee to be someone who works under the direction of a supervisor, for an extended or indefinite period of time, with fairly regular hours, receiving most or all his income from that one employer (or perhaps two employers). Lyft drivers can work as little or as much as they want, and can schedule their driving around their other activities. [...] But Lyft drivers don’t seem much like independent contractors either. We generally understand an independent contractor to

be someone with a special skill (and with the bargaining power to negotiate a rate for the use of that skill) [...] Lyft drivers use no special skill when they give rides. Their work is central, not tangential, to Lyft's business.” (Cotter v. Lyft, 2015)

Ultimately, the judge ruled that under California Legislature Lyft drivers were to be regarded as employees, but the situation has not always been this clear-cut when it comes to platform workers.

Having said this, it's important to note that the existence of legal gray areas is not always a desirable condition for companies either. A company in order to operate requires, ideally, clear-cut political, economic and legal conditions, as to better formulate long-term plans. Legal gray areas produce uncertainty, which the company can exploit in the short-term, but which disadvantage it in the long-term.

Another problem involving platform workers is that it is generally more difficult to oversee whether relevant legislation is being complied with. The nature of platform work makes it intrinsically difficult to regulate it, because work is not performed at a specific time and place, but rather it is decentralized and fragmented, to the extent that it's difficult to even call the environment in which the platform worker operates in a “workplace.”

Labor inspection systems have some difficulties in evaluating in practice working conditions and therefore to ensure compliance with existing legislation, in particular with regards to occupational safety and health. (Cefaliello and Inversi 2022) The exercise of the Fundamental Principles and Rights at Work as defined by the *1998 ILO Declaration on Fundamental Principles and Rights at Work* (freedom of association and effective recognition of the right to collective bargaining, elimination of all forms of forced or obligatory labour, effective abolition of child labour, elimination of discrimination in employment and occupation), which should be ensured to all workers, may also be fundamentally compromised. (De Stefano and Aloisi 2018, 6)

Freedom of association and collective bargaining are also harder to exercise when the workers are dispersed and don't know each other, especially in a situation in which they're operating in competition to one another as opposed to the cooperation found in standard employment relationships. (Ibidem) The atomization of workers brought by the fragmentation of work makes it particularly difficult for them to exercise their collective rights in general. The failure to ensure the complete abolition of forced and child labor makes the spread of click farms in which children and other workers are forcibly employed a worrying possibility; some forms of discrimination may be averted, but neither US legislation nor EU law provide full protection against discrimination for self-employed workers. (Ibidem, 7-9)

These factors combined have rendered the conditions of platform workers rather precarious. Precariousness has been described as a pervasive condition in platform work, with a high turnover rate of workers resulting in low earnings aggravated by a lack of sufficient work for everyone. (Campbell 2022, 118-119; ILO 2021, 22) The working conditions of platform workers are regulated mainly by the terms of conditions of the

app that mediates between workers and clients (ILO 2021, 24), and said conditions can be revised unilaterally by the firm (Campbell 2022, 124), leading to a difficulty for platform workers to effectively manage their working life. The platform worker, who might have been attracted to platform work first and foremost for the independence and freedom it provided, might find himself or herself constrained by the “algorithmic management” (ILO 2021, 26; Berg 2019, 10) of the app. As an OECD report (2016, 22) puts it: *“The flexibility of [platform work] can turn into a challenge if service providers are not in power of their time or are forced into working more or in worse conditions than in traditional markets.”*

The situation is so dire that many platform workers who are unable to find other sources of revenue turn, when possible, to unemployment benefits and social assistance (Ibidem, 8), but the majority of platform workers is regarded as an independent contractor or generally as “self-employed”, and therefore is not covered by social security, so measures that are taken for granted in standard employment relationships such as work-related injury provisions, sick pay, parental leave, unemployment and disability insurances, paid vacations and old-age pensions are not available to them; (ILO 2021, 26; Larsson and Sabolová 2020, 177) in the UK, for instance, employees are automatically enrolled in workplace pensions and employer contributions, but platform workers are excluded from pensions, and have to purchase different insurance plans by themselves. (Larsson and Sabolová 2020, 176) Lacking healthcare coverage in a context of long working hours and low wages risks creating so-called “gig patients”, platform workers who would be in need of medical treatment, but which they cannot meaningfully obtain, leading to the development of a vicious circle in which their medical condition worsens without them being able to do anything about it. (Ibidem)

Another issue facing platform workers is discrimination and harassment, which tends to be more common for platform workers in app-based taxi and delivery sectors compared to platform workers employed in freelance platforms, probably because the latter is able to provide anonymity and privacy that the former can't. (ILO 2021, 189-191)

Finally, a worrying trend that has propped up in recent years is the charging of a fee (charged on the remuneration of the project or for a “premium membership”) by the platform to the platform worker for them to be able to work. All of this has happened despite multiple ILO Conventions (namely, Convention No. 95 under Art. 9 and Convention No. 181 under Art. 7) explicitly discouraging and prohibiting it. (Berg 2019, 13-15)

All these factors have taken a toll on platform workers. Given that the precarious forms of work of platform workers is analogous to that of workers generally employed in the gig economy, we may use a policy brief (Gross, Sally-Anne et al. 2018) building on a research analyzing the mental health and well-being conditions of gig workers in the British music industry to draw some generalities of the effect that precarious work has on people employed in it. In particular, the research found that depression and anxiety

are not just commonplace, but preponderant in the industry, with around 70% of music artists and industry professionals suffering from it. (Ibidem, 12) Financial instability, exhaustion, emotional instability and a general blurring of relationships characterized by an inability to distinguish between friends and colleagues, between social and work environments, have all been reported as common. As the policy brief states: “[*Precarious work*] suffers not only from a precarity of finances, but also a precarity of status, a precarity of certainty, and a precarity of sociality”. (Ibidem, 15-18) It might be the case that some of these findings are worse in the music industry, which is known to be plagued by the idea of the “tortured artist”, yet it’s also not difficult to imagine many platform workers feeling the same way given everything that’s been said so far.

Having raised all these concerns it’s still important to point out one thing: we have mainly focused on the negative trends brought about by the rise of digital labor platforms. That does not mean that they do not also provide multiple benefits: many workers might prefer the flexibility provided by a digital labor platform as opposed to the common managerial style found in standard employment relationships. The gig economy breaks down the barriers of the typical 9-to-5 office jobs both in terms of time (by providing extreme flexibility in that regard) and space (by not requiring people to work in an office). This kind of change should be welcomed insofar as it provides people with more employment relationships and working environments to choose from. Other advantages include the possibility of providing job opportunities to those who are housebound and to those living in rural areas in developing countries. (Aloisi 2016, 658; De Stefano 2015, 16)

The core issue right now is that platform work still largely exists in a legal gray area, and its unregulated nature makes it subject to frequent abuses. However, legislators and courts at the national and supranational level have recently started to slowly but surely deal with this phenomenon, and it is this the scope of this thesis to analyze and compare the developments in case-law and legislation that have occurred in China and in Europe. A comparative analysis on this specific topic is currently absent from the literature and the thesis aims at filling it.

The thesis is structured as follows: Chapter 1 will focus on the developments that have occurred both at the EU level and within various EU countries; the chapter concludes by describing the initiatives taken outside of the institutional context. Chapter 2 deals with China: it describes the digital economy in China and traces the developments of the labor legal framework in the country; subsequently, it looks at the development in the country’s sources of law with regards to platform work and concludes by delineating particular issues in China that could hinder worker protection. The conclusions will then follow, summarizing the similarities and differences found between Europe and China.

Chapter 1. Digital labor protection in Europe

1.1 The European Context

Although investments in digital labour platforms in Europe are just above a quarter of North-America's, platform work is fairly developed in the European Union. As of 2018, surveys conducted by the Commission's Joint Research Centre found that around 11% of the EU's workforce had, at the time, provided some form of platform work at least once.³ (ILO 2021, 20) The data on the matter is generally quite clear: platform work has had a staggering growth so far and is expected to continue to do so for the coming years. (Hauben et al. 2020, 19) It is a field which has already impacted tens of millions of people in the EU alone, and therefore its regulation is an important topic within the EU. However, the EU can't regulate it at will. When legislating, it must always comply with the principle of proportionality and the principle of conferral, both prescribed by Article 5 of the Treaty of the European Union (TEU). The EU can legislate only in matters conferred upon it explicitly or implicitly by either the TEU or the Treaty on the Functioning of the European Union (TFEU); in the latter, Title X sets out the competences of the EU in the matter of social policy. It can be generally said that Member States still retain a high degrees of competence over social policy and, in particular, some important matters such as pay, right of association and of strike are explicitly outside the competences of the EU. (De Groen et al. 2020, 27-28)

Thus, the role of the EU on social and labor law is generally that of setting up the minimum levels of protection that member states have to comply with. The most widely adopted instrument is the directive, which must be transposed into national law therefore ensuring that member states still retain some discretion on the matters being legislated.

1.2 Digital labor protection in the EU

Historically, the European Court of Justice (hereinafter "CJEU") has autonomously developed its own definition of an employment relationship as one based on a service performed for a protracted period of time by one person under the direction of another one in exchange for a remuneration. (ibid.) This is a very broad definition of employment relationship, one which has extended the status of worker at the EU level even in contexts of low-productivity, short contract duration, discontinuity of work and limited hours. (Aranguiz 2023, 297-298) This broad definition also explains why EU social law has never adopted intermediate

3 The number could nonetheless be higher, as it's difficult to obtain because most EU countries do not require platforms to register or report on the number or volume of transactions and when they do, such as for Belgium, public data is hardly available. (Hauben et al. 2020, 18)

categories comparable to the Italian “parasubordinate work”, for instance. (Aloisi 2020, 7)

As of now, the CJEU has yet to assess the issue of worker classification with regards to platform work, but two rulings by the CJEU have partially elucidated the issue: the *Yodel ruling* and the *FNV Kunsten ruling*. (Heißl 2022, 70) In the *Yodel ruling* (Case C-692/19), the CJEU found that the Working Time Directive does not apply to self-employed workers. However, in the case the Court clarified that when determining the alleged freedoms and the independence enjoyed by the platform workers, they must be found to not be fictitious; this is in line with the doctrine of “primacy of facts”. (Heißl 2022, 71-72; Aloisi 2020) On the other hand, through the *FNV Kunsten ruling* (Case C-413/13) the Court expanded on the notion of worker by clarifying that he “forms an integral part of that employer’s undertaking, [thus] forming an economic unit with that undertaking”. (Heißl 2022, 73) The embrace of the role that organizational integration plays in the subordination of the worker is particularly relevant in the platform economy as usually the platform worker is an integral part of the business model. In general, it can be argued that these judgments are still too superficial to be able to paint a clear picture of the classification or protection of platform workers within the EU. It is therefore necessary to look at the legislative measures that have been adopted.

Over the years, the EU has also adopted a series of measures to deal with the issues raised by the platform economy. In 2016, the European Commission adopted a guidance on the matter titled “A European agenda for the collaborative economy”, (hereinafter “Agenda”) which was aimed at clarifying the concept of platform work and orienting policy related to it. (Aranguiz 2023, 296; European Commission 2016, 2) In particular, with regards to worker classification the Commission promoted a case-by-case approach in which the existence of a subordination link, the nature of the work performed and the presence of a remuneration collectively act as core criteria in establishing the existence of an employment relationship. European Commission 2016, 6) In doing so, the EU was exclusively setting up the minimum standards that should be followed, and member states remained free to establish through national sources of law who’s considered a worker. (ibid., 7)

The Agenda was followed by the adoption in 2017 of a resolution on “European Pillar of Social Rights”.⁴ (Aloisi 2021, 13) The resolution lists 20 principles and rights “essential for fair and well-functioning labour markets and welfare systems in 21st century Europe”; (“European Pillar”) notably for platform workers, the document states that workers have a right to an adequate minimum income (principle n° 14) and to have their personal data protected in the

4 Hereinafter “EPSR”.

employment context (10); it further mentions the right to social protection for both workers and the self-employed (12) and for special leaves of absence to be set up for parents and people with caring responsibilities (9).

Despite the soft law nature of these two documents, the Agenda and the EPSR Resolution were still important, as they displayed the awareness that EU institutions had vis-à-vis the challenges of the platform economy. In addition, they acted as the foundation for the adoption of two new binding European instruments: the 2019/1152 Directive on transparent and predictable working conditions (hereinafter “TPWC Directive”) and the 2019/1158 Work-Life Balance Directive (hereinafter “WLB Directive”).

The TPWC Directive repeals the 1991 Written Statement Directive (91/533/EEC), which set out “a compulsory list of the minimum information every employer must provide to their employees within the first two months of the employment relationship in order to guarantee ‘transparent and predictable working conditions’”, (“Written Statement Directive”) but was been criticized both for its narrow scope (many categories of workers were excluded) and for allowing the single Member States to define unilaterally to whom the Directive could apply, which led to a heterogeneous application of this legal instrument. (Szpejna & Boudalaoui-Buresi 2020, 10) The new Directive solves this by covering “every worker in the Union who has an employment contract or employment relationship as defined by the law, collective agreements or practice in force in each Member State with consideration to the case-law of the Court of Justice.” (Art. 1(2) of the Directive) It is a “hybrid notion of worker” which extends the scope of the Directive because it potentially includes all those categories of workers who had been excluded by the 1991 Directive, provided that they meet some basic criteria. (Aranguiz 2023, 299-300) Among the provisions, Article 11 stands out: in order to avoid abusive practices within on-demand platform work, Member States are encouraged (not obliged) to adopt a rebuttable presumption of the existence of an employment contract. (Szpejna & Boudalaoui-Buresi 2020, 11)

The WLB Directive has the same scope as the TPWC Directive, and it aims at achieving the ninth principle brought forward by the EPSR Resolution. It does so by providing for ten days of paid paternity leave for fathers (or equivalent second parents, if national legislation allows it), four months of parental leave, 5 days of carer leave per year for carers, among other measures. (Ibid., p. 20-21) While both Directives do not exclusively concern platform workers, they’re particularly relevant for them as these sorts of abuses (the blurring of working and social life and unpredictable working conditions, as mentioned in the introduction) are especially common in the platform economy.

Platform workers in the EU can also, of course, rely on existing EU legislation for some basic legal protections. While it is not possible to analyze all relevant European legislation on the matter,⁵ a particularly interesting proposal made by some commentators has been that of using the General Data Protection Regulation (GDPR) to address some of the procedural problems that specifically affect platform workers. In particular, Art. 5(1)(a) states that personal data should be processed transparently, and Art. 15 establishes a right of access for data subjects; these two tools can be used to render more transparent the operation of otherwise opaque rating systems. Alternatively, in cases in which automated systems have made erroneous decisions, the platform worker can either request a rectification of the data through Art. 16 in the case in which erroneous data was fundamental in making said decisions, or invoke Art. 22 to have some form of human intervention on the matter. (Silberman & Johnston 2020, 6-8)

Two more legal instruments need to be addressed. The first is a Recommendation on access to social protection for workers and the self-employed adopted in 2019, (Aranguiz 2023, 300-302) which calls for the extension of social protection measures to all workers and self-employed people in the EU, as well as the creation of monitoring systems and the publishing of reliable national statistics on the topic. However, given its soft-law nature it remains entirely up to the single member states to implement it.

The second instrument is a Proposal, first published by the European Commission in December 2021, for a new Directive “on improving working conditions in platform work”. (Hooker & Antonucci 2022, 7) The Directive aims first and foremost at introducing a partial reclassification of platform workers by judging the control that the platform exercises over five core criteria: remuneration, performance of the work, supervision, working time and the possibility of working for other clients. If at least 2 of these criteria are met, a rebuttable presumption of employment is introduced.

Secondly, the Proposal would oblige platforms to declare data on their workforce to the relevant national authorities, thus partially solving the monitoring issue mentioned by the 2019 Recommendation.

Lastly, it would introduce human monitoring for algorithmic management, and subject the latter to the same rules as human employers with regards to data protection, privacy, health and safety. (Hooker & Antonucci 2022, 8) Altogether, the Proposed Directive seems to be an impressive step forward at the EU level in ensuring an adequate protection for platform workers: in a single piece of legislation it largely addresses the issue of misclassification and extends many

5 See (Szpejna & Boudalaoui-Buresi 2020) for more.

of the existing legal protections to all platform workers, including those self-employed. Having said this, the proposal has not been exempted from criticisms: it has been claimed that the rebuttable presumption of employment exists only on paper, as in practice it still remains up to the platform worker to demonstrate that two elements out of the five have been met, and that while reclassification would automatically extend social protections to potentially millions of platform workers, those who remain classified as self-employed would not be granted any new social protections. (ibid., 8-9)

In conclusion, EU case-law has yet to clarify the issue of platform worker classification from the perspective of European law, but recent legislation (in particular, the TPWC and the recently proposed Directive) seem to indicate that in the future the EU legislator might decide to fully embrace a general presumption of legal relationship rather than creating an intermediate category for platform workers altogether.

1.3 Digital Labor Protection within EU member states

When analyzing digital labor protection in the European Union, it's not sufficient to look at EU law but, rather, it is essential to look at the case-law, legislation and initiatives taken at the Member State level, as to have a complete picture of Digital Labor Protection within the EU.

1.3.1 Worker classification, case-law and legislation

1.3.1.1 France

Similarly to the EU, worker classification in France has historically relied on a binary: workers are either employees or non-employees. Whereas a presumption of employment exists for certain categories of workers, platform workers who have to be entered in a business register are generally presumed to be self-employed.⁶ (Hießl 2022, 12)

Legislative measures concerning platform workers were enacted quite early on. Already in 2016 the so-called *Khomri Law* (Law n° 2016-1088) was enacted, specifically addressing platform workers. While not comparable to the *tertium genus* found in countries such as Italy and Spain, (Hießl 2022, 12) it creates a specific category for self-employed workers operating under digital labor platforms.

6 The presumption of self-employment is regulated by the French Labour Code in articles L.8221-6-I and L.8221-6. It is the product of the 1994 Madelin Act and the 2014 Pinel Act. In particular, the former established the concept of "micro-entrepreneur." (Daugareilh et al. 2022, 53)

The issue of classification for platform workers is particularly complex in France, having gone through a long and tormented history. With regards to ride-hailing drivers working for platforms such as Uber, LeCab, Kapten, SRT and Bolt, in a 2020 landmark judgment the *Cour de Cassation* upheld a 2019 decision by the Paris Appeals Court which recognized that Uber drivers were, in fact, in an employment relationship. (Hießl 2022, 12) In the ruling, the Court stated that while a presumption of self-employment exists following the registration in a business register by the Uber driver, “the existence of an employment contract may be established in cases where said persons provide services under terms and conditions placing them in a relationship of permanent legal subordination with regard to the principal.” (“Reclassification”) In this case, the existence of an employment contract was based on the absolute reliance that the Uber driver had on the platform, which prevented her from determining the fares or the terms and conditions for conducting her transportation service. Furthermore, the freedom to connect and to choose working hours could not be considered by themselves characteristics sufficient for excluding an employment relationship, as those were *de facto* strongly restricted through both the algorithmic management of the app, and the possibility by the company to sanction the driver for choosing inefficient routes and to unilaterally deactivate and restrict the driver’s access to the platform in particular circumstances. (Ibid.) For these reasons, the *Cour de Cassation* dismissed Uber’s appeal.

However, in following judgments arising from similar circumstances, the *Cour de Cassation* has not maintained this approach. In 2022, it overruled 2 rulings by the Paris Appeals Court: (Hießl 2022, 14) in January it ruled that Kapten drivers were to be classified as employees in the light of “the constraints imposed on drivers [by the platform], [...] the level of influence and control exercised by the platform on the conditions of exercise of the service”; (“Appeal n°20-11.139”) however, in April of the same year it found that drivers working for LeCab could not be classified as employees due to “the freedom of the driver to choose his working hours and days, [...] to disconnect when he wishes, [...] to carry out rides on his own account or on behalf of any other person, [...] to organise freely the rides allocated to him and the possibility of subcontracting the journey”, (“Appeal n°20-14.870”) despite the fact that the Uber and LeCab platforms operate very similarly, and at times the latter exercises stricter controls. (Hießl 2022, 14)

As the *Cour de Cassation* explicitly stated in this last case, it has yet to make a decision on the issue of classification on ride-hailing drivers, which explains the contradictory nature of these 3 judgments. As of now, the Court relies on a case-by-case approach in which minor differences in the business model can tip the scale of worker classification one way or the other. While it remains an open issue to be fully resolved it seems that, generally, ride-hailing drivers can be considered

self-employed workers as long as they are not prescribed a particular conduct when working and are not imposed working hours, among other criteria. (Ibid.)

Judgments regarding food-delivery drivers tend to be inconsistent as well. A 2018 landmark case by the *Cour de Cassation* found that Take Eat Easy riders had to be classified as employees; (ibid., 15) this ruling was based on elements already seen in ride-hailing platform cases: namely, the existence of a disciplinary regime and the control exercised by the platform. However, subsequent case-law by the Paris Appeals Court has found that TTT workers could not be classified as employees despite the similarities between the TTT and Take Eat Easy. (ibid.) Nevertheless, in the last case involving Deliveroo drivers the Paris Appeals Court found, differently from the past, that its workers have to be classified as employees. (ibid.) It could be said that even though the current case-law might appear to be incoherent, there's a general trend favoring the reclassification of riders as employees.

Notably, an important case on the classification of crowdworkers reached the *Cour de Cassation*. The case itself is about criminal law, as the platform Click and Walk was found (by the Douai Appeals Court) criminally liable for disguising an employment relationship as self-employment. (Hießl 2022, 16) However, upon reaching the Criminal Chamber of the *Cassation*, the latter stayed the proceedings and referred a series of questions to the Social Chamber regarding the criteria by which the crowdworker could be classified as self-employed. The Social Chamber replied by stating that the crowdworker is to be classified as self-employed if he is free to abandon the tasks during the execution and the company doesn't have the power to control how the task is to be performed or to sanction the worker for lack of compliance. ("Appeal n°20-81.775")

Having seen the developments in the classification of platform workers, it is now possible to mention the legislative measures that have been adopted in recent years. The Khomri law has already been discussed, but it's still deserving of attention. By creating this *de facto* third category (albeit not comparable to parasubordinate work *per se*), collective rights already enjoyed by employees (such as freedom of association and the rights to collective action and collective bargaining) have been extended to all platform workers⁷; (Daugareilh et al. 2022, 55) furthermore, the law stresses the "social responsibility" of platform companies and obliges them to cover workers' vocational training (L7342-3 of the French Labour Code) and workers' insurance for workplace accidents (L7342-2), and workers have the right to access all the data concerning their activities within the platform (L7342-7). The law also introduces the "right to disconnect", which

7 With that said, the right to strike and freedom of association are already recognized to all workers by the Constitution. (Daugareilh et al. 2022, 56-57)

requires 11 hours of rest time for employees between two working days, and 35 hours of rest time per week. (Lerouge 2020)

Finally, in 2019 the Orientation Law on Mobility was approved, covering delivery and ride-hailing platform workers. It establishes the rights for drivers to be informed about the price before taking a call and to refuse some orders, and it prevents platforms from employing certain sanctioning mechanisms. Platforms are also allowed to set up a social responsibility charter clarifying the duties and the rights of both the platform and the platform worker. (Hießl 2022, 12; Aloisi 2021, 8)

In conclusion, in France the issue of classification is still wide open. Generally, it can be said that there's a very thin margin which differentiates an employee from a non-employee. If the platform has a wide control over the platform worker (especially during the execution of the tasks) and a sanctioning system in place, it is generally the case that the worker will be classified as an employee. If the control exercised on the platform worker remains marginal, then he may still be classified as self-employed. As numerous pending cases have yet to be heard by the *Cour de Cassation*, one can expect further clarifications on the topic in the coming months and years. With regards to legislation, the trend is one of increasing protections for platform workers in general, and for delivery and ride-hailing platform workers in particular.

1.3.1.2 Spain

In Spain, workers can be divided into 3 categories: employees in standard employment relationships are regulated by the Workers' Statute ("Estatuto de los Trabajadores") while self-employed workers and independent contractors are regulated by the Statute of the Self-Employed ("Estatuto del trabajo autónomo", also known as "LETA"). This also applies to platform workers as well, as there is no law comprehensively regulating them. (Daugareilh et al. 2022, 94)

The Workers' Statute comprehensively covers employment relationships, which are defined by four core elements: voluntariness, remuneration, alienation, and dependency on an employer. (Hießl 2022, 29) Article 8.1 of the Workers' Statute establishes a presumption of employment for work performed under an organization in exchange for a remuneration. (ibid.) Case-law has also determined the existence of a labor relationship by taking into consideration additional elements such as the level of integration and dependency of the worker within the organization, the extent of the worker's decision-making power, the existence of a fixed working time and the use of professional tools and uniform given by the organization to the worker. (Cherry & Aloisi 2016, 668-669)

LETA was introduced in 2007 to meet the needs of the changing labor market and it covers "all forms of self-employed or independent contractor-type work [and]

all aspects of self-employment.” (Cherry & Aloisi 2016, 670) All self-employed workers are entitled to termination benefits, maternity and paternity leave, temporary sickness, and other social security programs for specific groups. (Ibid.) Self-employed workers also have access to collective rights, such as the right to strike and to bargain collectively. (ibid.) They do so through novel collective agreements known as “professional interest agreements.” (Daugareilh et al. 2022, 95) It must be noted that all these protections are still not as robust as those enjoyed by employees.

LETA thus introduced a *tertium genus*, that of the “economically dependent self-employed” (“trabajador autónomo económicamente dependiente”, also known as TRADE), which closely resembles the Italian “lavoro parasubordinato”; TRADE workers work autonomously for a single client, from which they derive a minimum of 75% of their income. (Hießl 2022, 29; Cherry & Aloisi 2016, 672) TRADE workers enjoy more legal and social protections than self-employed workers, albeit still not as much as employees. In particular, they are entitled to “[a] minimum wage, annual leave, entitlements in case of wrongful termination, leave for family or health reasons, [...] collective bargaining, [...] an annual vacation, a set number of days off per week, a limit on working hours, the right to be covered by insurance against work-related accidents and diseases, and protection for workers unemployed as a result of business failure.” (Cherry & Aloisi 2016, 671)

To be considered a TRADE, as opposed to an employee, some criteria set out by Art. 11 of LETA must be met. (“Ley 20/2007”) They can be summarized in three points:

1. TRADE workers do not not rely on subcontractors.
2. They work autonomously by having their own productive and material infrastructure which lets them organize and operate in autonomy.
3. They receive a remuneration tied to the result of the activity.

A worker becomes a TRADE only after following numerous procedural and formal requirements, which includes the mandatory signing of a written contract. Without one, the worker is presumed to be an employee. (Cherry & Aloisi 2016, 673)

In recent years, Spain has had an influx of cases regarding the classification of platform workers, almost exclusively concerning the classification of delivery drivers working under platforms such as Deliveroo, Glovo, Take Eat Easy and UberEats. (Hießl 2022, 29) In particular, the issue is whether delivery drivers have to be recognized as TRADE workers or as employees.

In answering this question 2 cases stand out. In 2019 the Madrid Appeals Court, in line with previous judgments, found that the TRADE contract signed between a delivery driver and Glovo was lawful and denied the existence of an employment relationship between the parties. The court stressed the freedom to choose the time slot in which the delivery driver works, to accept and reject orders (even after the task has been started, without any penalty) and to choose the route to reach the destination set by the customer; other elements include the tying of the remuneration to the performance of the tasks and the lack of responsibility towards other workers or the platform. (“STS”)

In 2020 the Spanish Supreme Court (the *Tribunal Supremo*) overruled this case and found, in a landmark judgment, that Glovo delivery drivers have to be reclassified as employees. The Supreme Court strongly disagrees with the Madrid Appeals Court on many crucial points. It denies that Glovo acts as a mere intermediary, as it unilaterally determines all the terms and conditions of service, in particular the prices and it addresses the alleged independence and autonomy enjoyed by delivery drivers from 2 sides: by looking at its long history of judgments on what constitutes an employment relationship it demonstrates that elements such as the freedom of working hours or the possession by the worker of their own vehicle for the performance of the work activities do not preclude the existence of an employment contract; even if that were the case, the Court then continues by disproving the argument altogether by proving that delivery drivers are not truly autonomous and independent: they are subject to a permanent control system by the platform, exercised through a rating system and GPS tracking, they are excluded from the management of the business system, they are given instructions on how to carry out their activities and a sanctioning system has been set out to penalize them for some undesirable conducts. (ibid; Hießl 2022, 32)

The Supreme Court further found that the contract that had been signed did not meet the condition required by LETA to have the status of TRADE, as delivery drivers do not have their own organizational criteria (laid down unilaterally by Glovo) and lack the essential infrastructure to exercise their activity: the motorcycle and the phone are simple accessory or complementary means, and the real material infrastructure is the platform itself, which is managed solely by the platform company. (“STS”)

The Spanish Labor Inspectorate has found that Amazon Flex riders (*de facto* courier drivers) should be classified as employees following the same reasoning. (Hießl 2022, 31-32) Amazon’s appeal before the Madrid Social Court has been rejected. (Socorro 2023)

The Spanish Labor Inspectorate has also been instrumental with regards to classification vis-à-vis ride-hailing drivers: in multiple decisions (the last relevant

ones taking place in 2021) it found that both Uber and Cabify drivers were in fact in an employment relationship, prompting their reclassification as employees. In its decisions it focused on the control exercised by the platform companies, following the same general reasoning as the Spanish Supreme Court in its 2020 landmark judgment. (ibid., 32-33)

The only relevant legislation enacted to address platform workers specifically has been the so-called “Riders’ Law” of 2021. It was approved following a process of social dialogue between unions and employer representatives and it codified what had already been in the 2020 Supreme Court case involving Glovo delivery drivers by introducing a rebuttable presumption of employment for delivery drivers. (Hießl 2022, 30)

Additionally, delivery drivers won’t be forced to pay for social security covering their public pension, and they have the right to be informed about the parameters, the rules and the instructions used by the algorithms employed to manage them. (Prince 2022; Aloisi 2021, 6) However, the law has been criticized for its fairly narrow scope. (Aloisi 2021, 6)

To summarize, it can be said that platform workers in Spain already enjoy some legal and social protections already when classified as TRADE and that the problem of misclassification is largely solved for both ride-hailing drivers and delivery drivers, with both now being classified as employees. For crowdworkers, however, there have been no significant developments in the past few years and thus their condition (both social and legal) remains an open issue.

1.3.1.3 Germany and Austria

Whereas France and Spain have shown the vast majority of cases concerning on-demand work, Germany and Austria have had court cases exclusively concerning crowdworkers so far.⁸

German law adopts a broad notion of employee under Section 611a of the German Civil Code, according to which the worker is whoever is directed to perform work as instructed and under a relationship of personal dependency; however, a *tertium genus* category exists in Germany through the category of the “employee-like person”. This provision “requires workers to be “economically dependent and in need of social protection comparable to an employee”, perform services essentially personally and either work predominantly for one person or receive more than half of their average total remuneration from one person.” (Hießl

8 There have been cases concerning on-demand platform workers brought before Berlin Labour Court but they ended in settlements. (Hießl 2022, 17)

The most important case on the topic of crowdworker classification is the so-called *Roamlar case* of December 2020, in which the Federal Labour Court reclassified a platform worker as an employee by applying the principle of primacy of facts and determine that the crowdwork platform was *de facto* acting as the employer given: (Hießl 2022, 18)

- The nature of the work performed, which consisting of simple and pre-determined tasks to be performed personally by the worker.
- The structure of the platform which creates clear incentives to continuously complete tasks.
- The relationship established between the two parties, on one side the degree of constant availability required by workers to complete tasks, and on the other the degree by which the platform had achieved a stable and reliable workforce that was equivalent to that found in standard employment relationship.

Austria too has had cases only concerning crowdworkers. However, all four instances of judicial assessment were brought before the Federal Administrative court, which determines the classification of employment exclusively for the purpose of granting social security, not the existence of an employment status in itself. The rulings were found two times in favor of reclassification of crowdworkers as employees and two times against it, with the main disagreement stemming from the degree of authority exercised by the platform company. (ibid., 4-5)

1.3.1.4 Nordic Countries

In Nordic countries such as Sweden, Finland and Denmark, the platform economy remains a marginal phenomenon and, as such, there have been no labour court cases on the issue of platform worker classification. In Denmark and Finland this issue has arose in Competition and Labour Councils respectively, whereas in Sweden Administrative Courts have given a tentative answer.

In Denmark, the Competition Council found in two decisions in 2020 that minimum hourly fees required by two digital labor platforms violated Denmark's Competition Act. In the decisions, the Competition Council considered workers working for the 2 platforms as self-employed, given the freedom by the individual worker to accept or reject a request, and that all the details of the service, including remuneration, are agreed between the customer and the worker; the platforms neither organise nor supervise the work, do not provide any equipment, bear no liability for defects, delay or non-attendance by the worker, and their disciplinary actions are limited to account suspension or deactivation in very limited circumstances.

In another instance, the Tax Council did reclassify the relationship between the food delivery platform Wolt and one of its on-demand platform workers as an employment relationship in the light of the constant monitoring and strict control of operations performed by the platform, which proved that the entrepreneurial freedom which self-employment should ensure was not present in this circumstance. (Hießl 2022, 9-10) In Finland, for very similar reasons, the Labour Council found in two non-binding opinions that delivery drivers and riders working for two specific platforms were to be reclassified as employees. According to the Labour Council, an employment relationship could be established for platform workers if an individual performs work personally, for remuneration and under strict instructions and management, including algorithmic management. (ibid., 10-11)

In Sweden, multiple rulings in 2021 by first and second-instance administrative courts have so far consolidated an approach to platform worker classification that closely resembles the one found by the Danish Competition Council. In particular, as long as the platform leaves aspects of work and remuneration to be determined by the worker and the customer, doesn't directly arrange the work to be performed and is not responsible for providing neither a salary nor materials to the worker, then workers operating under said platform cannot be classified as employees.

1.3.1.5 Central and Eastern Europe

In Central and Eastern Europe, the size of digital labor platforms tends to be significantly reduced relative to Western EU countries, as illustrated by qualitative research. (Drahokoupil et al, 2023, 310) Furthermore, platform work tends to be seen solely as a secondary source of revenue and not as a novel employment relationship in itself. For these reasons, developments in case-law, legislation and even initiatives (as shown in the next paragraph) haven't developed to the same extent as the rest of Europe. As of today, there have been no challenges in courts specifically with regards to the classification of platform workers and no changes in labor codes or legislation have been enacted specifically to address issues faced by platform workers. (ibid., 313-318)

Platform workers are thus generally classified as self-employed, which makes it impossible for them to be eligible for trade union membership. (ibid., 319) The only exception is provided by Poland, where, in 2015, the Constitutional Court ruled unconstitutional the automatic exclusion from trade union membership for self-employed workers. (Aleksynska 2021, 41)

How are platform workers classified and what legislation applies to them in a context so uncertain? Romania provides an example, by classifying platform workers on a case-by-case basis by applying the principle of "primacy of facts" to

the existing Tax Code, which lays out seven criteria to determine if a worker is self-employed: (Daugareilh et al. 2022, 87-88; Aleksynska 2021, 44)

1. The person performing the work (the service provider) has the freedom to choose where, when and how he performs his work.
2. He is free to work for several customers.
3. He bears the risks, including the financial and business risks, inherent to the work performed.
4. He uses his own equipment for the work.
5. He invests his physical or intellectual capability to perform the work, in accordance with its specific features.
6. He belongs to an occupational organisation or association representing, regulating and overseeing the occupation (e.g. A lawyers' bar).
7. He is free to perform the work himself or with the help of employees or colleagues.

If at least four of these apply, the worker is classified as self-employed. If not, the worker is classified as an employee which, in the case of platform workers, further entitles them to protection under Law 81/2018 which governs “teleworkers” and regulates the relationship between the parties, including data protection, and gives access to all statutory rights applicable to employees. (Daugareilh et al. 2022, 88-89)

1.3.2 Collective agreements and other initiatives

An interesting development that arose in the past years in Europe, both parallel to institutional developments (through developments in regulation, legislation and case-law), but also as a response to perceived institutional inaction, has been the flourishing of initiatives by civil society, generally taking the form of collective bargaining initiatives.

These initiatives have almost exclusively taken place in western and northern EU countries, highlighting the smaller weight played by the platform economy in Eastern Europe, as well as both the weaker role which characterizes unions in countries of the former Soviet bloc and their general disinterest with regards to platform workers.⁹ (Aleksynska 2021, 42)

Italy, in particular, represents a special case not only due to the fact that it's the country where the most collective agreements have been made, (Lamannis 2023, 14) but also because it's the only EU country where institutional agreements

9 In general, collective agreements and other kinds of initiatives are altogether nearly absent from Eastern Europe.

have also taken place, which are agreements where an institution (at the local or national level) is one of the parties involved.

Examples of said agreements are the “National Protocol against Illegal Brokering in Food Delivery”, the Protocol between the Municipality of Modena and the national unions, the “Naples Charter of Fundamental Rights of Gig Economy Riders and Workers”, the Agreement between the Tuscany Region and the national unions, and the “Bologna Charter of Fundamental Rights of Digital Workers in the Urban Context”. (Lamannis 2023, 24) The latter is particularly interesting for two reasons:

1. The agreement comprehensively covers issues inherent to platform work, such as data portability, algorithm transparency, the right to disconnect and the reputational ranking systems.
2. The initiative, while signed by the national unions and the municipality of Bologna, initially started through the creation of a local, single-issue union, the Riders Union Bologna.

The phenomenon of local, single-issue unions is not new, but is particularly widespread all over Western Europe with regards to platform workers. There have also been, albeit less frequently, attempts to organize crowdworkers too, with services such the United Freelancers Union in Belgium, which organizes freelancers among other categories of platform workers.

Initiatives have predominantly taken place at the local and national level, but notable examples of cross-border initiatives do exist, such as the Transnational Federation of Couriers, established in 2018 and nominally representing couriers all across Europe (regrettably, representatives from Eastern Europe were absent), to coordinate on shared demands and organizing strategies; another well known example is the so-called “Frankfurt Declaration”, a 2016 document elaborated and signed by European and North American unions, labor confederations, and worker organizations, calling for “democracy in digital workplaces as well as clarity on the employment status of platform workers, transparency and social protection”. (“FairCrowdWork”)

Other initiatives include websites that range from simple web pages to reach out and inform platform workers of their rights and duties, like the one developed by the General Labour Federation of Belgium, to complex platforms like FairCrowdWork, developed to rate digital labor platforms from the point of view of platform workers, thus giving insights into “pay, communication, evaluation systems, tasks and technology on various platforms”. (ibid.)

To conclude, another common initiative has been that of developing sources of soft law such as charters and code of conduct to be unilaterally adopted by digital labor platforms.¹⁰

An example of this is the Anglo-German “Crowdsourcing code of conduct”, setting out 10 principles for Crowdwork platforms to adopt as to improve working conditions and fair treatment. (“Crowdsourcing”)

To summarize, the initiatives have so far followed four trends:

1. They concern almost exclusively on-demand platform work, as opposed to crowdwork.
2. Within on-demand platform work, they comprise mainly the food delivery sector.
3. They take place mainly at the local level, although there are examples of cross-border initiatives.
4. They take place almost exclusively in Western and Northern Europe.

¹⁰ Charters and codes of conduct are not common in countries such as Romania. (Daugareilh et al. 2022, 90)

Chapter 2. Digital labor protection in China

2.1 Digital labor platforms in China

In China, the development of the digital economy is a symbol of the rapid process of modernization the country has gone through in the past decades, following the economic reforms (*Gǎigé kāifàng*, translated as “*reform and opening-up*”) launched by Deng Xiaoping in 1978.

The digitalization efforts have so far been extremely successful: the biggest digital companies outside of the US can be found in China (e.g: Alibaba and Tencent) and the Chinese e-commerce market is the biggest in the world, double the size of the US (Chen Yiu Por 2021, 6) and bigger than those of France, Germany, Japan, the UK and the US combined (Zhou 2020, 7). In 2018 the Chinese digital economy amounted to a third of the country’s GDP (Ibid.) and it’s expected to grow in the coming years, as in January 2022 the Chinese State Council announced its first five-year plan on the digital economy with the aim of promoting digital transformation by targeting all aspects of Chinese society. (Wu 2022)

The platform economy is no exception to these developments. The Chinese platform economy is the largest in the world, with an employed population surpassing 80 million in 2020, close to 10% of the total employed population in the country. (“Platform Economy”) An important difference compared to Europe and the US is that while in Western countries digital labor platforms are overwhelmingly confined to business-to-consumer relations, in China they’ve been widely adopted in business-to-business transactions as well.

The magnitude of the Chinese platform economy (and the digital economy at large) cannot simply be justified by the sheer size of the country’s population, but rather it is explained by the enthusiastic support that the Chinese government has always had for the platform economy. Since 2006, when digital labor platforms first started spreading in China, state-sponsored media promoted them in their official channels (Chen Yiu Por 2021, 6), and the government further encouraged their development through a relaxed regulative approach (Zhou 2020, 38). Some observers have gone so far as to state that the Xi Jinping administration has allowed the sector to develop “outside the law”; (Gallagher 2021, 597) that is, the development of this sector was seen as so vital for China that the Chinese government’s approach has been to disregard its own sources of law to ensure its success.

While said success has taken place, if the existence of legal gray areas has led to legal and socioeconomic issues, as it stated in the introduction, the possibility to develop “outside the law” must have led to similar if not greater abuses. This is something that will be explored after first introducing some general notions of Chinese labor law.

2.2 The current legal framework

A known fact about China is the preponderance of poor working conditions popularized by the fame of China as the “factory of the world”, coupled with news dealing with systematic abuses in Chinese factories; a known example are the factories managed by Foxconn, which manufacture electronic products for all kinds of tech giants (among which Apple) and became known in the past decade for their abysmal labor conditions. (Yi 2020) Knowing this, a common misconception that naturally arises is the belief that Labor Law in China is poorly legislated, but this is not the case. On the contrary, this branch of law is fairly developed.

The main sources of law dealing with labor relations¹¹ in China are the Labor Law (1994), the Trade Union Law (1992), the Labor Contract Law (2007), the Promotion of Employment Law (2007), the Labor-dispute Mediation and Arbitration Law (2007) and the Social Insurance Law (2011), together with all the administrative regulations and rules that have been enacted but have yet to be codified into comprehensive laws. (Zhou 2020, 27)

A notable exception is the Constitution; while the 1982 Chinese Constitution does have some provisions that concern workers¹², constitutional review, defined as *“the power of courts to examine whether legislation enacted by the parliament or acts of the executive authorities are consistent with the written constitution and, within this query, to determine their validity”*, (Zhu 2010) does not take place in China, at least not as it’s commonly understood in Western countries. Constitutional provisions act more as guidelines for the exercise of proper governance.

The main legislation in the field of law is the Labor Law of 1994, which codified in a single authoritative documents all the administrative regulations that had been enacted in the 1980s as the country transitioned from a centrally planned economy to a market-based economy. (Ngok 2008) Before then, a legislative

11 The “employment” terminology as it is applied in Western countries was banned in the country for ideological reasons following the establishment of the People’s Republic of China in 1949. (Zhou 2020, 27)

12 Articles 42 to 45 recognize, respectively, the right and duty to work (Art. 42), the right to rest (Art. 43), the right to a retirement (Art. 44) and the right to material and assistance by the State for certain categories of people who are unable to work (Art. 45). (“Constitution”)

framework had never developed, as on one side central planning allowed for an extensive and direct control of the economy from the highest levels of State-owned enterprises to the single the work units (*dān wèi*), (Franceschini 2016, 25-26) and, on the other, law itself had been rejected as a tool of governance in favor of *rén zhi*, often translated as the “*rule of man*”, although a more correct translation would be “*rule of (the) people*”. (Chew 2005) The development of a labor market following the economic reforms launched by Deng Xiaoping made it necessary to enact a legislative framework covering labor, and this gave birth to the 1994 Labor Law.

The Labor Law deals with workers’ rights, individual and collective labor contracts, working hours, rest and vacations, wages (including minimum wages, which are determined by the single provinces), occupational safety and health, the hiring and firing of workers, the mechanism for the resolution of labor disputes and other. (Ngok 2008, 52) It is a comprehensive document that regulates in details the entire working life and the rights and duties of employees and employers.

With that said, two critical issues must be highlighted: first, the Chinese legislator decided to focus almost exclusively on individual labor rights and collective rights are often lacking¹³. (Ibid., 53) For instance, the right to strike is not recognized (nor is it explicitly banned, hence existing in a legal gray area), and freedom of association is severely restricted by the legal recognition of a single union, the All-China Federation of Trade Unions (herein “ACFTU”).¹⁴ (Chen Feng 2007, 65-66)

The second issue regards labor contracts themselves: while in other legal systems’ gaps in legislation covering labor contracts are usually covered by general notions of contract law, in China this was not possible due to the “*legal divide between labour contracts on the one hand and all other kinds of contracts on the other*”. (Cooney et al. 2013, 88) Since the Labor Law poorly regulated labor contracts, the result was a proliferation of subcontracts and contracts containing oppressive contractual terms. (Ibid.)¹⁵

13 China has yet to ratify both ILO’s Fundamental Conventions recognizing workers’ fundamental collective rights, namely the 1948 Convention on Freedom of Association and Protection of the Right to Organise (No. 87) and the 1949 Convention on the Right to Organise and Collective Bargaining (No. 98).

14 An issue further compounded by the recognition by many experts that the ACFTU is “increasingly incapable of protecting workers”. (Liu, 2022)

15 Moreover, even when the contracts are signed the conditions are generally unfavorable for workers, because whereas in Europe the standard form of employment contract is the continuing contract, which allows for the dismissal of the employee only with legitimate reasons, labor contracts in China tend to predominantly be short-term, with a duration unilaterally determined by the employer. (Wang et al. 2019, 102) This leads both to increased precariousness and allows Chinese employers to fire workers on significantly lesser grounds.

These issues led to the enactment of the Labor Contract Law in 2007, which adopts a restrictive approach in terms of contract creation by obliging the employer to sign a written contract within a month from the hiring of the worker. The law further expands workers' rights in the formation of contracts, sets limits as to their resolution, renders more active the role of the ACFTU, sets new penalties and increases existing ones for violations. (Harper 2009, 69-70) In general, it aims at developing more harmonious working relations.

Another innovation brought by the Labor Contract Law was the extension of some legal protections found in standard employment relationships to part-time work and labor dispatch. The latter is an atypical employment relationship common in China, which occurs when so-called dispatch agencies act as intermediaries between the employee and the employer. Under this employment model, the employee works for the employer, but the management, the costs (including wages and social security) and the liabilities generally become a responsibility of the dispatch agency. (Zhou 2020, 29)

Research has shown that the Labor Contract Law has generally been successful in its objectives, ensuring that disadvantages labor market categories (such as migrant workers, workers with lower professional titles) are now significantly more likely of signing continuing contracts. (Wang et al. 2019)

The Labor Law and the Labor Contract Law are the 2 main sources of law that govern labor relationships in China. A labor relationship is established through a labor contract between the worker and the work unit. While neither of them are directly defined in labor laws, it is still possible to extract their meanings from existing provisions; both are understood very broadly: the former as any person who "earn their living primarily from wages" and the latter covers all private and public entities. (Ibid., 28)

"Labor relationship", too, isn't defined in labor law, but a notice on the matter was issued in 2005 by the Ministry of Human Resources and Social Security which clarified that a labor relationship, to exist, must meet 3 criteria:

- "1. The work unit and the worker meet the principal legal qualifications.*
- 2. The worker is subject to the work unit's rules and labour management and engages in paid work arranged by the work unit.*
- 3. The labour provided by the worker is an integral part of the work unit's business."* (Ibid.)

This notice, being a source of soft law, is not binding for courts but it remains nonetheless a commonly used definition. However, it has been criticized for being too restrictive, as it encompasses almost exclusively standard employment relationships while excluding more flexible arrangements. (Ban 2020) Due to its

rigidity, this definition excludes platform workers from labor relationships regulated through labor contracts, relegating them to what are called “labor agreements” (Sun et al. 2019, 11) which are further divided in “labor service relationships” or “employment relationships”, (Zhou 2020, 29-30) both of which are regulated by civil law and provide fewer legal protections and inferior employment, health and social security benefits. Notably, this prevents platform workers from joining a union. (“New Perspective”)

In China, too, businesses operating digital labor platforms have resorted to hiring workers as independent contractors in order to avoid their labor and social protection obligations, usually by signing civil contracts known as “cooperation agreements”. In some cases, workers in labor relationships have been laid off and substituted by platform workers who were hired to do the same tasks while enjoying less protections in the process. (Zhou 2020, 11) This has continued to go on despite the fact that platform work is increasingly becoming a *de facto* full-time job for those performing it and, as such, their main source of income. (“Platform Economy”)

Without covering too extensively what has already been discussed in the introduction, it can be said that Chinese platform workers broadly suffer from the same conditions faced by other platform workers: namely, an issue of classification (further complicated by the widespread adoption of dispatched labor), a condition of precariousness and poor working conditions.¹⁶¹⁷

2.3 Labor protection for platform workers in China

The first issue to be analyzed is the issue of classification, as many of the difficulties faced by platform workers arise from a possible misclassification. For a long time, at the national level, the classification of platform workers has generally been unclear, as the central government avoided the issue. For instance, in 2016, an order enacted by the Ministry of Transport with the aim of regulating the online car-hailing service avoided the matter altogether, leaving it for arbitrators and courts to decide. (Ban 2020, 51)

In the absence of a national approach on the matter, local solutions were thus taken. The first step has often been the revision of the indicators used to define a “labor relationship”, going beyond those prescribed by the 2005 notice mentioned in section 2.2. In 2017, the People’s Court of Tianjin City issued the Trial Guidelines on Labor Disputes which listed the following indicators:

16 See (Zhou 2020, 34-38; Lei 2021) for more.

17 The most egregious example might be the condition that many delivery workers face, which has been thoroughly documented by a report that went viral on Chinese social media in 2020. See (“Delivery Workers”) for more.

- “(1) the contract of service that has been concluded between the parties;
(2) the employee is subject to the management, command or supervision of the employer;
(3) the payment of wages by the employer to the employee;
(4) the work performed by the employee is integrated into the business organisation system of the employer and not the independent profession or business;
(5) the employee has no right to subcontract his work;
(6) the equipment for work normally is provided by employer;
(7) the term of work provided by employee is continuous and not of short time duration
(8) the employer pays the social insurance contribution for employee.” (Ibid.)*

The approach that has been adopted is one that looks at how closely the relationship between the worker and the employer resembles one found in standard employment relationships. That is, arbitrators and judges have to comprehensively consider these indicators on a case-to-case basis, (ibid.) and in doing so, the more the worker is reliant on the employer, the more their relationship can be described as a “labor relationship”. Thus, the role that subordination plays becomes central, and this perspective has quickly become the most widely adopted over the years: a similar approach has been promoted by both the High People’s Court of Guangdong Province for first instance courts, and by the guidelines on the topic issued by arbitration commissions in Jiangsu Province. (ibid., 52)

This focus on subordination is a balancing act. In practice, this means that many platform workers, especially those who enjoy a high degree of autonomy and are not provided any tools or equipment by the platform company in order to perform their work, still remain excluded from labor relationships. This has been the case for crowd-workers, and many on-demand workers have found themselves in the same situation. Multiple cases brought against E-Daijia (A Beijing-based company which manages a digital labor platform which hires temporary drivers, similarly to Uber and Lift) have found that workers could not be considered as part of a labor relationship because of the autonomy they enjoyed: they could unilaterally decide whether to accept a request and which route to follow, and the remuneration was paid entirely by the customer. (ibid., 53) The element of subordination might still exist, but to a considerably lesser extent compared to standard employment relationships.

Two landmark cases in Beijing have established the existence of a labor relationship between the platform worker and the digital labor platform. (ibid., 53-54) The “*Good Chef*” case takes its name from the homonym platform, which offers

a home cooking service to its customers: when a customer requests this service through the app, a platform worker comes to the house and provides the chef service using tools and equipment given by the company. He's later remunerated through a fixed monthly payment, and while he can refuse to provide the service, the platform has a system of incentives and punishments that strongly deters from doing so. For all of these reasons, the court held that there was a *de facto* labor relationship, and therefore that a labor contract had to be signed. This might not be that surprising, as many of the characteristics of the relationship strongly resembled the ones found in standard employment. The "*FlashEx*" case also takes the name from the homonym company operating an express courier service through a digital labor platform. When a request for a delivery is made, the platform assigns it to a pool of platform workers in the customers' area; whoever accepts the request has to make the delivery. Despite the occasional relationship of the work and the absence of fixed fees, the Haidian District Court of Beijing found the existence of a labor relationship, given that the worker had to conclude the work once it had been accepted, that during working hours there would be *de facto* very little autonomy and that the delivery work throughout the working period would constitute the main source of income. (ibid.) Furthermore, platform workers are given a training and have to wear a badge which lets them represent the company. (Zhou 2020, 33-34) In general, the economic dependency resulting from the work performed created a condition of subordination typical of that found in a labor relationship.

As previously mentioned, the use of dispatched labor is particularly widespread in the platform economy. Some changes have already been made: in 2012, the Labor Contract Law was amended to restrict the use of dispatched labor, confining it to temporary, ancillary or substitute positions (Art. 66).¹⁸ Dispatched workers also have a right to a pay equal to that of other workers performing the same job but under a labor relationship with the employer (Art 63). Additional criteria have been established for dispatching agencies to be allowed to operate, as well as harsher penalties for violations. (Pan 2013) In 2014 the "Interim Regulations on Labor Dispatch" were approved, imposing a 10 percent limit on the number of dispatched workers employed in a company, out of the total number of employees. In case of cross-province dispatching, the dispatched workers are provided with the rate of the social insurance of where the employer is located. ("Labor Dispatch")

The problem of classification, however, still remains. Assuming the criteria for the existence of a labor relationship are met, is the employer the dispatching agency or the company operating the digital labor platform? Here, too, the core

18 Temporary positions last up to six months; ancillary positions are those not central for the functioning of the business; substitute positions are those that temporarily replace workers who are unable or unavailable to work for a certain period.

element that establishes a labor relationship is subordination. Whoever, among the work units, exercises a wider control and is more involved in the management of the worker, will be considered as the work unit with whom the labor relationship takes place. Usually, this “real employer test” tends to find that the main relationship (even when the contract is civil in nature) exists between the platform worker and the dispatching agency, as the *Liu YaYa case* and the *Tang Tongyang case* have demonstrated, but there can be exceptions if, for instance, the platform company covers the worker’s accidental work insurance, is responsible (even indirectly) for the worker’s wages, and the worker’s service is an integral part of the company’s business, as found in the *Shi Lei case*. (Ban 2020, 56-57)

However, all of these cases have taken place at the provincial level. At the national level significant changes have occurred only in very recent years, following a regulatory crackdown on the tech sector which put an end to the lax regulatory approach that tech companies had enjoyed in the past decades.

In 2020, the Ministry of Human Resources and Social Security and the Supreme People's Court (herein “SPC”) jointly released 10 typical cases on overtime labor, all won by employees.¹⁹ (“Ministry Human Resources”) Notably, one of them confirmed the illegality of the “996” working hour system, according to which the worker must work since 9 AM to 9 PM for 6 days a week. This system had become the norm in the tech sector over the years despite its known illegality, so this really highlighted the change in approach by the Chinese state.

More relevant for platform workers was the release, on July 2022, of guiding case no. 179, which confirmed the basic principle of “substance over form” when classifying platform workers, thus expanding at the national level the “subordination test” first seen utilized in local courts. (Li 2022)

There have also been significant changes for platform workers who are not part of a labor relationship. On December 24, 2021, an amendment to the Trade Union Law extended the scope of the legislation. In particular, Article 3 used to define workers as “*Manual workers and intellectual workers in enterprises, institutions and institutions within the territory of China whose main source of livelihood is wage income*”, (“New Perspective”) while they’re now defined as “*Workers in enterprises, public institutions, government agencies and social organizations [...] within the territory of China whose main source of livelihood rely on wage income*”, (“Trade Union Law”) meaning that all platform workers are now allowed to join a union.

¹⁹ Typical cases, also known as guiding cases, are not directly decided by the SPC. They are cases that have been decided at the local level, yet which the SPC wants to highlight. Guiding cases are binding. (Jia 2016)

A series of guiding opinions have been issued by multiple ministers. On July 2021 several ministers and national institutions (including the SPC and the ACFTU) issued the first national guiding opinions regulating the entire platform economy, ("Platform Economy") titled *"Guiding Opinions on Protecting Labour and Social Security Rights and Interests of Workers Engaged in New Forms of Employment"*. ("Guiding Opinions") On one hand it focuses on the role of platform companies, as it strongly encourages them to comply with existing regulations, obliges them to pay their workers not less than the minimum wage, to sign labor contracts where the circumstances for establishing a labor relationship are met, and generally to play a more active role in ensuring that platform workers enjoy better working conditions; on the other, local trade union organizations, administrative departments, courts at all levels and labor dispute mediation and arbitration institutions are also encouraged to strengthen their mechanisms to ensure laws are being complied with.

Other guiding opinions have been issued for specific categories of workers: on July 27 2021, ("State Administration") seven authorities announced guiding opinions for food delivery platforms, calling for a less stringent algorithmic management, reduced work intensity and the establishment of mechanisms that ensure that workers' wages are not lower than the local minimum wage. For couriers, seven authorities issued guiding opinions for courier platform workers on June 2021, ("Seven Departments") calling for the establishment of a collective wage negotiation mechanism, and encouraging courier companies to establish labor relationships whenever possible and to pay work-related injury insurance premiums to all courier workers, even those in flexible, civil-based arrangements.

On November 2021 Opinions were released "on strengthening the rights and interests of employees in new transportation formats", focusing on ride hailing platform workers. The Opinions call for transparency on income and fares, supporting employees in getting social insurance, strengthening occupational injury protection, ensuring reasonable remuneration for employees; it also calls for a more active role by trade unions (who should also negotiate for ride-hailing platform workers' wages), stronger cooperation between social parties and a general improvement of working conditions, with particular focus on ensuring enough rest time. ("New Transportation")

On January 19 2022 nine Chinese ministries and commissions jointly issued the *"Opinions on Promoting Standardized, Healthy, and Sustainable Development of Platform Economy"* ("Several Opinions") which calls for the establishment of systems that provide an external supervision and evaluation for platform compliance, the strengthening of inspection systems and worker consultation

mechanisms, and the creation of a universal insurance scheme for all platform workers.

Finally, on December 2022 the Supreme People's Court issued Opinions with the aim of stabilizing employment. The document essentially reiterates and promotes what had already been states in previous Opinions and case-law. ("Stable Employment")

The main issue is that these are opinions; while legally binding, they only establish vague general principles and it is up to the provinces to enact legislation that is compliant with them while prescribing clear-cut norms, adapted to the local context. Another criticism is that these opinions exclusively focus on on-demand workers, excluding crowdworkers in the process.

2.4 Issues that might hinder worker protection in China

When discussing about Labor Law in China, two considerations must be further taken into account about the Chinese legal system, which may compromise the ability to effectively provide legal protections to workers in general and platform workers in particular.

The first element, more closely associated to labor law, is the lack of an effective system of labor inspection; that is, a system of government agencies that ensure that labor legislation is effectively being complied with. China, as opposed to France, Italy and Spain, has yet to ratify the 1947 ILO Convention on labour inspection (No. 81) and the 1969 ILO Convention on labour inspection in the agricultural field (No. 129). It has nonetheless developed a labor inspection system but this hasn't had the desired effect so far, as these agencies are plagued by persistent understaffing, with a few tens of thousands of labor inspectors having to investigate potentially millions of companies for compliance. (Franceschini 2016, 50) This makes labor inspections particularly difficult to be carried out in the country, especially among small and medium enterprises. It is for these reasons that, despite a developed legal framework on labor, violations in this field are notoriously widespread in the country. The prospective for platform workers is potentially even bleaker given the nature of the work performed through digital labor platforms, which makes it even more difficult to inspect for proper compliance, and thus leaving labor protections recognized by case-law and legislation only "*on paper*".

The second element, which applies to the entirety of the Chinese legal system, is that the Chinese system of governance is not based on the rule of law: the Chinese government initially had a very lax regulatory approach to the extent that widespread violations of labor norms were common, then only in recent years has the government adopted a different approach, stemming mainly from the

regulatory crackdown of the tech sector, and rules that had existed for up to decades started to actually be enforced. The 996 working hour system is a perfect example of this: despite having been *de jure* illegal since the enactment of the 1994 Labor Law, it was widespread throughout the Chinese tech sector, and it became *de facto* illegal only in 2021 during said crackdown.

Therefore it can be said that in China, once a rule is enacted, its actual enforcement is contingent to the central government's approach, and this makes it difficult to create a stable legal framework which ensures legal certainty. Long-lasting labor protections can thus never be fully reached under such a system of governance, but are always tied to the will of the central government. This is an issue known to Chinese workers, who in turn often feel like they lack a solid legal ground to act against their employers. (Liu 2022)

This is opposed to European countries, where the legal system can develop organically of its own, independently of the contingent approaches taken by the legislative and executive branches of government: once a rule is enacted it is applied with exclusive reference to other sources of law, building over time a stable and coherent legal framework which creates legal certainty and allows for the development of stable labor protections. Of course, this does not mean that labor protections themselves cannot worsen, but such changes have to either happen outside the legal system, for instance through a worsening of socioeconomic conditions, or through conscious changes by the legislator, which impacts the legal system only indirectly, through an alteration of the applicable law.

To understand as to why China lacks a system of governance based on the rule of law, the answer must delve into political and historical territory. One might think of it as the product of the rise to power of the Chinese Communist Party (CCP) and the autocratic control that the party exercises over the state, but this is incorrect, as the exercise of central, autocratic power has always been a characteristic of Chinese rule, (Fairbank et al. 2006, 50) and the advent of liberalism in China in the 19th Century did not change this. As Fairbank again notes: (ibid., 257-260)

“Rights of all sorts were either to be granted by the state or to be withheld by it when in its own interest. All Chinese constitutions have listed many rights but only as programmatic ideals, not necessarily as laws to be enforced. Behind this Chinese version of “liberalism” lay the prior assumption that the ruler’s power was unlimited, still autocratic [...] rights were guaranteed “except as limited by law.””

The adoption of the rule of law is a central focus of Xi Jinping's political agenda, yet it must be kept in mind that while under his administration some limited reforms at both the judicial and legislative level have been enacted with the aim of

building the rule of law in China, the criticism mentioned at section 2.1 that claimed that the platform economy had been allowed to develop “outside the law” had been made exactly against Xi’s administration.

What does all of this mean for worker protection? While it could be the case that a system of governance based on the rule of law allows for better long-term protections, it’s also true that such a system is not a *conditio sine qua non* for said protections to take place. However, without the rule of law labor protections are ensured only through the active patronage of the central government, and nothing ensures that such patronage will become permanent.

To summarize, in China a source of law might exist, but it might not be applied in practice because the government closes an eye on the lack of compliance, and even when this is not the case, violations could still be widespread due to a poor labor inspection system.

Conclusions

To conclude, we can summarize the developments in the protection of platform workers from four perspectives: worker classification, compliance, collective labor rights, social protection.

With regards to worker classification both China and Europe had a similar development, whereby platform workers were initially classified *a priori* as independent contractors or self-employed (the only exception being Spanish platform workers, with some being classified in the intermediate category of TRADE workers) and subsequent case-law and legislation reclassified them into more protected legal brackets, either by acknowledging their status as employees, or by creating intermediate categories.

The general trend has been the adoption of the principle of “primacy of facts” through case-law,²⁰ recognized in China at the national level with Guiding Case no. 179 (through the promotion of the principle of “substance over form” and the subordination test); in the EU *Yodel* has pointed towards the same direction, although no case has directly dealt with the issue of platform worker classification; the same principle has been adopted in Austria and Germany, and in the Tax, Competition and Labor Councils in Denmark and Finland as well as the first and second-instance administrative courts in Sweden. In Central and Eastern Europe there are no cases over the matter, therefore the issue seems to be largely open, although Romania does apply “primacy of facts” for determining an employment relationship, as per the Tax Code. France has seen the adoption of an intermediate category for many platform workers through the *Khomri Law*, but the issue of classification remains open due to the uncertainty still existing in case-law. On the other hand, Spain has largely come to an answer: ride-hailing drivers and delivery drivers are largely recognized as employees, the former thanks to the findings of the Spanish Labor Inspectorate, the latter thanks to the introduction of a rebuttable presumption of employment; all other platform workers have some social and legal protections already ensured by being categorized as TRADE workers.

Having said this, the rebuttable presumption of employment in Europe might become the standard in the coming years, as the EU is encouraging member

20 This is a common trend in Europe and China, but should not be regarded as a universal trend; in the USA, for instance, multiple states have enacted bills which classify most platform workers as independent contractors *a priori* (De Stefano et al. 2021, 19-20; Douglas 2019) The trend has at times been negative; for instance, in 2019 in California the AB5 bill was enacted, classifying on-demand workers as employees; a year later, a direct ballot initiative (Proposition 22) was approved, which created an intermediate category for delivery and ride-hailing drivers, thus stripping them of their employment status and letting them retain only some social protections. (Cherry 2020)

states to embrace it and is considering adopting it via the proposed Directive “on Improving Working Conditions in Platform Work” from 2021.

The topic of compliance saw only marginal developments in the EU, with the aforementioned 2019 EU Recommendation calling for the creation of monitoring systems able to publish reliable statistics on platform work, which would indirectly lead to improved compliance with existing legislation, but the soft law nature of the document makes its implementation uncertain at best. Within EU member states, no specific legislation was introduced on the matter. In China, the joint opinions issued on July 2021 and January 2022 called for the strengthening of inspection systems and mechanisms ensuring compliance, together with the creation of systems that will supervise and evaluate digital labor platforms. The comparatively stronger response was likely due to the scale of the problem in the country.

With regards to collective workers’ rights for platform workers, China has solved the issue by directly extending the right to join a union to all platform workers, through the amendment of the Trade Union Law. However, both freedom of association and collective bargaining are strongly hindered in China due to, on one side, the existence of a single national union, and on the other by the lack of legalization of the right to strike. In the EU the situation is quite different: only employees and self-employed workers whose condition is comparable to that of employees have a right to collective agreements recognized at the EU level, (Aloisi and Gramano, 2019) which leaves all workers categorized as self-employed largely without access to these rights; with that said, national legislation can extend these rights, and this is why platform workers under the *Khomri Law* in France and LETA workers in Spain have access to the same collective rights enjoyed by employees, and also why the Polish constitutional court has declared unconstitutional the automatic exclusion from trade union membership for self-employed workers. In addition, workers classified as an employee in Europe enjoy both freedom of association (recognized by Article 11 of the European Charter of Human Rights) and collective bargaining (Article 28 of the Charter of Fundamental Rights of the European Union).

Finally, with regards to social protections we have generally seen a clear trend, both in China and in Europe, of national legislation (or, in the case of China, “opinions”) calling for the extension of social protection for platform workers; whereas Chinese opinions have remained vague on the issue, thus leaving it open for interpretation at the local level, at the EU level some clear-cut achievements have already been made with regards to parental and carer leave thanks to the WLB Directive. The 2019 EU Recommendation is also relevant, as it calls for a further extension of social protections. One could further argue that Europe has broader social protections already existing for platform workers at both the EU and

national level, covering matters such as paid leave and data protection, both of which are absent for Chinese platform workers.

To summarize, European platform workers can rely on a more fractured, yet generally more protective framework of worker classification, have access to a wider arrange of social protections and to stronger collective rights, although the latter only once they've been classified as employees, whereas Chinese platform workers can always join the national union. Another advantage for European workers comes in the form of the role played by civil society, with initiatives being often formulated outside of the institutional context. For how fragmented it might be in Europe, in China it is almost entirely absent, as the role of the government is always paramount in political matters. Finally, thanks to the existence of systems of governance based on the rule of law and to better labor inspection systems European platform workers can also rely, compared to their Chinese counterparts, on a more stable legal system and more effective compliance with the law. It is thus clear that digital labor protection has made several developments in the right direction in both Europe and China, with generally stronger protections existing in the former.

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